ResearchGate

See discussions, stats, and author profiles for this publication at: https://www.researchgate.net/publication/385556541

Land Acquisition in Bangladesh: An Analysis

Thesis · November 2024

CITATIONS
0

READS
1,055

1 author:



Md. Aliuzzaman Suzon
University of Asia Pacific
2 PUBLICATIONS **0** CITATIONS

SEE PROFILE

All content following this page was uploaded by Md. Aliuzzaman Suzon on 05 November 2024.

The user has requested enhancement of the downloaded file.



UNIVERSITY OF ASIA PACIFIC

DEPARTMENT OF LAW AND HUMAN RIGHTS

LLM (General) Program, 1st year 2nd Semester

A Dissertation on

Land Acquisition in Bangladesh: An Analysis

Submitted to

Dr. Chowdhury Ishrak Ahmed Siddiky

Professor, Department of law and human rights,

University of Asia pacific

Submitted by

Name: Md. Aliuzzaman

Registration No: **23109027**

Batch: 32

Department of Law and Human Rights

University of Asia Pacific

Date of Submission: 1 June, 2024

Table of Contents

DECLARATION i
ACKNOWLEDGEMENT ii
ABSTRACT iii

Chapter One: Introduction

1.1 Statement of the problem 1
1.2 Research Question 2
1.3 Objective of The Thesis 3
1.4 Literature Review 3
1.5 Analytical Framework 6
1.5.1 Effectiveness of law 6
1.5.2 Role of the government 7
1.6 Limitation of The Research 7
1.7 Structure of The Thesis 8

Chapter Two: Meaning and History of Land Acquisition

2.1 Introduction 9
2.2 Land acquisition 9
2.3 Development periods of Land Acquisition Laws of Bangladesh 10
2.3.1 British Colonial Era (Pre-1947) 10
2.3.2 Post-Independence Period (1947-1971) 10
2.3.3 Independence and Land Reforms (1971-1982) 10
2.4 Evolution of Land Acquisition Legislation 11
2.4.1 The Bengal Regulation Act, 1824 11
2.4.2 The Act XLII of 1850 11
2.4.3 The Act XI of 1857 11
2.4.4 The Act XXII of 1863 12
2.4.5 The Act X of 1870 12
2.4.6 The Land Acquisition Act, 1894 12
2.4.7 Acquisition of Property on Emergency Basis Act 1989' (Act IX of 1989) 13

2.4.8 The Acquisition and Requisition of Immovable Property Ordinance, 1982 14
2.4.9 The Acquisition and Requisition of Immovable Property Act of 2017 15
2.5 Conclusion 16

Chapter Three: Legal Framework of Land Acquisition in Bangladesh

3.1 Introduction.....17
3.2 Legal Basis for Land Acquisition in Bangladesh 17
3.3 Land Acquisition Proceedings under ARIPA 2017 19

Chapter Four: Problems Within the Current Land Acquisition Law and Proposed

4.1 Introduction.....23

4.2 The Drawbacks Within the Applicable Land Acquisition Law in Bangladesh 23
4.2.1 The term 'public interests' is not clearly mentioned.....23
4.2.2 No provision to return property 24
4.2.3 No Limitations on the Amount of Land to be Acquired for Development Projects.....24
4.2.4 Resettlement Procedure Ignored 24
4.2.5 Inadequate Time for Filing Objection.....25
4.2.6 Lack of Remedies for Harassment of Landowners.....25
4.2.7 Incident of inadequate compensation.....26
4.3 Proposed Alternative Solutions.....26
4.3.1 Inclusion of resettlement provision.....27
4.3.2 Inclusion of the clear description of Public Purpose 27
4.3.3 Adopting necessary amendments.....27
4.3.4 Setting land acquisition limits for non-governmental project.....27
4.3.5 Proper measures to return unused acquired land 28
4.3.6 Providing adequate time for filing objection 28
4.3.7 Special treatment to women, minors and disabled person.....28
4.3.8 Compensation for the other affected person 28

Chapter Five: Conclusion

4.4 Conclusion 29

BIBLIOGRAPHY 32

DECLARATION

I, Md. Aliuzzaman hereby declare that this dissertation titled '**Land Acquisition in Bangladesh: An Analysis**' has been completed by me as a part of the degree of the Master of Laws(general) in the Department of Law and Human Rights, University of Asia Pacific under the supervision of Dr. Chowdhury Ishrak Ahmed Siddiky, Professor, Department of Law and Human Rights, University of Asia Pacific.

I also declare that this thesis, or any portion thereof, has not been previously submitted for any other degree or examination at another university. Additionally, I confirm that all sources utilized or cited have been appropriately referenced and acknowledged.

Name: Md. Aliuzzaman
Registration No: **23109027**
Batch: 32
Department of Law and Human Rights
University of Asia Pacific

ACKNOWLEDGEMENT

"*In the name of Allah, the Beneficent, the Merciful*."

I would like to give my heartiest gratitude to our respected supervisor, Dr. Chowdhury Ishrak Ahmed Siddiky, Professor, Department of Law and Human Rights, University of Asia Pacific for giving me his valuable time, guidance and being so helpful and supportive throughout the entire semester.

Name: Md. Aliuzzaman
Registration No: **23109027**
Batch: 32
Department of Law and Human Rights
University of Asia Pacific

ABSTRACT

Land acquisition for difference infrastructure development is now an important matter of concern in Bangladesh as the country has taken several initiatives for economic growth. The ratio of land and population of the country has made the land a vital factor for policy making. A significant number of people were previously displaced, and more will do so in the near future as a result of the multiple infrastructure development projects that are currently running and many more that are planned with the aim of promoting economic growth and building new governmental institutions. The government has eminent domain power to acquire private land for public purpose under the constitution and the existing land acquisition law. All the land acquisition laws passed including the current law applicable to land acquisition failed to make a balance between the power of the government regarding land acquisition and the right of the affected party. Because the current land acquisition law Acquisition and Requisition of Immovable Property Act 2017 has some drawbacks such as resettlement provision was ignored, short time for filing objection, no return of unused acquired property, no restrictions on land acquisition quantity, no relief against harassment towards landowners etc. These drawbacks make the law less effective to protect the right of the affected party of land acquisition sufficiently. As these drawbacks of this law affect the right to property and other related right changes should be made in the law for the better welfare of the private land owner. The purpose of this thesis is to point out the drawbacks of Bangladesh's land acquisition laws in terms of securing adequate remedies to affected land owners, while also providing an outline of land acquisition laws, their evolution, and the Eminent Domain concept. The article also proposes possible solution for addressing the problem, which is being carried out under questionable procedural rules of the land acquisition law.

Keywords: Land Acquisition, Public interest, public purpose Eminent Domain, acquired property, Resettlement overlooked.

CHAPTER ONE

Introduction

1.1 Statement of the problem

Land acquisition is a specific process carried out for different development projects in Bangladesh in accordance with the country's current land acquisition laws. The acquisition of land for various development projects is a common topic for discussion, particularly in the developing nations such as Bangladesh. In Bangladesh, land acquiring by government for development project is regarded as a crucial matter. On 21September, 2017 the legislature of Bangladesh issued a new law for land acquisition namely The Acquisition and Requisition of Immovable Property Act 2017, which replaced the Ordinance of 1982. It has been executed in accordance with Gazette notification to satisfy the evolving demands and necessities. Government officials, academics, and development practitioners were all convinced that the Ordinance of 1982 was completely insufficient to deal with the implementation development initiatives and protecting individuals injured by this draconian legislation. People were compelled to leave their property and houses without proper, timely, and equitable compensation, leaving them in a state of poverty. The compensation offered by the Ordinance of 1982 for the acquired property was lower than the market price. It did not contain any provision for resettlement of displaced and impacted person, recognizing the difficulties of affected people and provisions for earning and living support.

Unfortunately, the Act of 2017 again fails addressing the rights of affected people by land acquisition as well as includes previous errors[1]. Instead of removing the previous error from the project of Jamuna Bridge, Bhairab Bridge and Padma Bridge construction, the acquisition law of 2017 is clearly biased to the land owners and other affected patties, and it makes no mention of resettlement provision, livelihood and income support, or restoration. Actually, the Act of 2017 is a clear example of "lessons not learned" from

[1]Munima Sultana, 'Land acquisition a new problem area for RHD', *The Financial Express*(online), June 12, 2018 <https://thefinancialexpress.com.bd/economy/bangladesh/land-acquisition-a-new-problem-area-for-rhd-1528606505>accessed on 20 April 2024

previous events.[2] The current laws emphasize the State's power rather than focusing on interests of the land owner, despite the fact that this procedure is being carried out for public purposes[3].

Eminent domain gives all modern governments the ability to take privately held land and utilize it for public benefit or use, by paying the owners a fair compensation. On the other hand, modern perspectives uphold those states should be held more accountable for the parties impacted than just compensating them. Since There is no internationally enforceable agreements on the matter. countries, including Bangladesh, govern their land acquisition laws in accordance with their own preferences.

Although the People's Republic of Bangladesh's Constitution states in article 42(2) that adequate compensation will be paid in the event of land acquisition, dishonest officials control the procedure and deny landowners their just compensation. But what exactly is recognized as fair and sufficient compensation. remained wholly under the control of the state.[4] Furthermore, the Constitution clearly provides that any legislation concerning acquisition that offers "inadequate compensation" cannot be contested in court (art 42.2). This arbitrary practice of unjust compensation, encourages social unrest between the impacted parties and the authorities. People in this situation want a just land acquisition procedure to guarantee real sustainable development.

Most of Bangladesh's earlier land acquisition laws, including the current one, failed to sufficiently safeguard the affected parties. The victims' grievances have not been addressed by these laws.

1.2 Research Question

How adequate are the current laws in protecting the right of the land owners during land acquisition?

[2] Ibid
[3] Supra, see note 1
[4] Shamim and Shakhawat Hossain, 'Right to Land: Is a Fundamental Right' *The Daily Star*, 4 March 2014

1.3 Objective of The Thesis

The main objective of the thesis is to specify the shortcomings of the current law of land with respect to its inability to protect private landowners' rights and to offer a few possible alternatives for the acquisition laws' current shortcomings while describing the history and legal framework of land acquisition in Bangladesh.

1.4 Literature Review

Md.Ariful Islam in his article covered the Acquisition and Requisition of Immovable Property Act 2017, procedures of land acquisition, and acquisition compensation.[5] He argued that the landowner's rights are frequently infringed upon and ignored during acquisitions, that the practice is very different, and that the Act neglects many significant obligations. Additionally, he mentioned that although acquiring private land requires adhering to the guidelines established by applicable laws, the current situation is very different because of the numerous irregularities that occur during the process. The Acquisition and Requisition of Immovable Property Act 2017 needs some amendment and thereafter have to be implemented sufficiently.[6]

I agree with the author that the Act does not identify many significant obligations and responsibilities of government, and the landowner's rights are violated and neglected. In spite of giving more emphasize on the affected parties rights the Act emphasize more on the power of the government. It creates an imbalance between the power of the government and the right of the affected parties. Due to sufficient safeguard to the rights of the land owner under the existing law the land owners face problems like inadequate compensation, corruption, force eviction, delay in getting compensation etc.

He discussed the overall land acquisition procedure under the Act but has not clearly identified the lacking of the Act. I will emphasize on finding the lacking of the Act which are the reasons behind violation of the rights of the private land owners. This thesis will

[5]Md.Ariful Islam, 'Law and Practice for Land Acquisition in Bangladesh' [2019] *Bangladesh Journal of Legal Studies* <https://bdjls.org/law-and-practice-for-land-acquisition-in-bangladesh>
[6] Ibid

also propose some potential solution to mitigate the existing problem which violate the rights of the land owner.

Ruhi Begum, Muhammad Mustafa Kamal in their article evaluated the present procedure of land acquisition and the wrong practices in the procedure.[7] They expose the irregularities in the land purchase procedure, wherein those impacted by the project are not fairly compensated and are instead required to pay bribes in order to receive compensation. They pointed out that officials by misusing discretionary power unethically obtain agricultural land, which increases the vulnerability of the project's affected people, despite the existence of national and international guidelines for land acquisition. They suggest improving transparency and accountability in Bangladesh's land acquisition procedure. The authors bring up the irregularity and corruption in the land acquisition procedure.

I agree with their findings because due to corruption and malpractice in land acquisition the land owners are not getting proper compensation. They also sometimes fall in fraud and become helpless. Sometimes due to lack of proper knowledge they can't stand against the irregularities. The current law of land acquisition does not allow adequate time to file an objection to the court which is bar to justice.[8]

The authors do not discuss the reason behind the irregularities and malpractice and also the shortcomings in the present legislation. The main purpose of this thesis is to identify the drawbacks of the current land acquisition legislation**.** In addition, this thesis will also discuss the legal basis and legal framework of land acquisition in Bangladesh.

Nasrin Akter in her article discussed present law regarding acquisition to make a decision to what extend the acquisition law protect the rights of affected partis.[9] She also identified the matter which need additional legislative actions. For a better understand the present situation of land acquisition law is compared with the FIG recommendations. FIG gives a complete guideline for land acquisition which makes a balance the rights of the land owners

---

[7]Ruhi Begum and Muhammad Mustofa Kamal, 'Governance in Land Acquisition Process: A Study on Shreehatta Economic Zone, Moulovibazar, Sylhet' [2020]10 *Journal of Public Administration and Governance*
< https://doi.org/10.5296/jpag.v10i2.17015>

[8] Supra, see note 7

[9]Nasrin Akter, 'Land Acquisition Legislation of Bangladesh and FIG Recommendations from Acquisition only to Addressing the Needs of those Affected' [2022]12*Jagannath University Journal of Arts*

and the power of the government. Finally, it provides to policymakers a few recommendations to help them to adopt more effective acquisition policies.

I completely agree with her matter of consideration in her article as she discuss about both the problem and the solutions. In my thesis I will try to develop the findings she brings out from her analysis. This thesis will identify the drawbacks of the current land acquisition law more specifically and will provide a detailed potential solution which can protect the right of the affected party more sufficiently.

Abu Bakar Siddique & Md. Azhar Uddin Bhuiyan in their article discuss about the authority to use eminent domain power, that allows government to acquire private property in cases involving the "public interest."[10] They assess the importance of this power while also criticizing its excessive use, which reduces people's property rights. They examined the second part of Article 42 of Bangladesh's Constitution, which states that the right to property can be withdrew only through compulsory acquisition or nationalization under legal authority. They additionally emphasize the suffering of people with social disadvantages when the government takes land for questionable public purposes with or without just compensation. They also discussed the interpretation of the phrase 'public purpose' in acquisition of land.

I agree with the author that there are cases where the land is acquired in an unjustified process and providing unjustified manner using the eminent domain power of the government. However, the authors don't offer any potential solutions. This thesis will focus to possible solution to prevent the misuse the eminent power of the government.

[10] Abu Bakar Siddique and Md. Azhar Uddin Bhuiyan, 'Preserving People's Right to Property: Demystifying the Dichotomy of the term 'Public Purpose' in case of Acquisition and Requisition of Land' [2017] *Bangladesh law Digest*<https://bdlawdigest.org/wp-content/uploads/2017/07/Preserving-Peoples-Right-to-Property-1.pdf>

1.5 Analytical Framework

1.5.1 Effectiveness of law

The first criteria of my thesis are the effectiveness of law as it is essential to identify what factors make a law effective. I have chosen this as criteria because the aim of my thesis is to examine the effectiveness of land acquisition laws of Bangladesh so it is important to know the standard of being an effective law.

Firstly, laws should be legally enforceable, which implies that processes and resources exist to ensure compliance and control violations. efficient enforcement systems include law enforcement and regulatory authorities, as well as the judiciary. Secondly law must include equity and fairness. To ensure justice and equality, laws must safeguard the rights of marginalized or vulnerable communities while also treating all people equitably before the law. It may be challenging to implement and comply with laws which are deemed unfair or discriminatory. Law should be adaptable enough to cope with changing conditions and expectations of society. They may contain provisions that can be updated or revised to address any new difficulties or implementation gaps. In order to avoid misinterpretation or contradiction, laws must be consistent with other legal norms and rules in the legal system. To achieve broad legal aims, consistency ensures that laws function collectively. Thirdly law must be accessible to public. Laws must be made public, so that individuals are informed about their legal rights, obligations, and remedies. Accessible laws facilitate compliance and empower people to speak out for their rights. Fourthly laws should be deterrent in nature. Effective laws deter people from engaging in illegal activities by threatening them with consequences or penalties. They also promote voluntary compliance of law by developing a sense of respect for the law and its basic principles. Finally, the effectiveness of a law is assessed by its impact on people and if it achieves its goals. This could involve improving public safety, protecting human rights, promoting economic growth, or addressing social inequities.

To measure the efficiency of the law, these elements must be addressed in the context of larger social, economic, and cultural situations. It comprises ongoing monitoring, review, and, if necessary, modifications to ensure that laws remain relevant and responsive to society demands. While these rights exist in theory, enforcing the land acquisition rules in

Bangladesh has proven challenging due to issues like transparency, corruption, and inadequate compensation.

1.5.2 Role of the government

The second and another important criterion of my dissertation is the role of the government. The government has a significant role in land acquisition because constructs legal basis for acquiring land and also consider various aspect such as the process of acquisition and the rights of the land owner. When acquiring land, the responsibility of the government is to establish a balance between the rights and welfare of impacted individuals and communities and development interests.

I have chosen this as a criterion of this thesis because it is the government who establishes laws and regulations that specify landowners' rights and the methods involved in acquiring land. These laws typically include provisions for equitable compensation, dispute resolution, and steps to protect landowner rights. The government is also responsible for enforcing the provisions of the laws governing landowner rights. So, the efficiency of the legislation and the rights of the landowner primarily depend on the government. Transparency and due process must be ensured by the government throughout the land acquisition process. This includes providing landowners with detailed information on the reasons for acquisition, their legal rights, and the amount of money to which they are entitled. Open approaches build trust in the acquisition process and safeguard landowner’s rights.

1.6 Limitation of The Research

In actuality, this thesis has some limitations. The scope was narrowed by the limitations. Due to the time limitation, it was not possible to complete the necessary fieldwork, such as visiting experts and conducting interviews, or to obtain resources from various governmental institutions. So, the thesis will be based on qualitative analysis. Getting information from land requisition authority is another challenge for this thesis there are restrictions of providing official records and information There were a few studies on this topic. That is yet another significant study limitation.

1.7 Structure of The Thesis

This thesis is structured in five chapter. Chapter 2 will discuss the history and development of land acquisition laws in Bangladesh. It will discuss the development period and the development of land acquisition law in Bangladesh. Chapter 3 will discuss the legal framework of land acquisition in Bangladesh and the detailed land acquisition procedure under the applicable law of Bangladesh. Chapter 4 will discuss the shortcomings of the current land acquisition law and also provide possible solutions to the problems to mitigate the effect of the shortcomings and safeguard the land owners' rights. Finally, chapter 5 will provide an overview of the thesis with its findings and a general conclusion.

CHAPTER TWO

Meaning And History of Land Acquisition

2.1 Introduction

The land acquisition law of Bangladesh has a long history that goes back to colonial times. The Bengal Regulation Act of 1824, passed by the British government, legalized the forcible acquisition of land for commercial purposes. This ordinance paved the way for future land acquisition regulations in the region. To address the complexity of land acquisition, many laws and changes have been enacted over time. Notably, the Land Acquisition Act 1894, enacted during the British time, served as a fundamental framework for subsequent legislation.[11] This chapter will discuss the history and development of land acquisition laws of Bangladesh.

2.2 Land acquisition

Government, non-government, or semi-government private bodies undertake out development projects for the benefit of the public. Development work may be conducted on their own land or on government-owned land, provided that some procedures or guidelines to be followed. This practice is commonly known as land acquisition.[12] Development projects are often permanent in nature and carried out on or over the land acquired. The recently enacted, The Acquisition and Requisition of Immovable Property Act, 2017 in Section 2(1) provide a definition of land acquisition.

“Acquisition means acquiring the ownership and possession of any immovable property for any requiring person or organization in exchange for compensation or rehabilitation or both.”

In the case of Lal Singh v. C P Berar,[13] the Indian Supreme Court declared that “acquisition refers to the actual transfer of property. To define the term "acquisition," it can be stated

[11] Md.Ariful Islam, ‘Law and Practice for Land Acquisition in Bangladesh’ [2019] *Bangladesh Journal of Legal Studies* <https://bdjls.org/law-and-practice-for-land-acquisition-in-bangladesh>
[12] Mohammad Towhidul Islam*, Lectures on Land Law* (1st Edition, Northern University Bangladesh 2013)
[13] *Lal Singh v. C P Berar* [1944] AIR FC 61

that when there is a need for land for public use and the project is permanent in nature, the government may acquire private land; this procedure is known as land acquisition. Acquisition, in every circumstance, involves the transfer of ownership".[14]

In different words it presents the procedure which handover the right of ownership from one to another. When private land is transferred for permanent development work, this is referred as acquisition. For example, "A piece of land is taken over by the government in a proper place for the establishment of a school which may be considered as Public Purpose with due compliance to the owner of that property it may termed as Acquisition".

2.3 Development periods of Land Acquisition Laws of Bangladesh

2.3.1 British Colonial Era (Pre-1947)

During British period, land acquisition laws were generally designed to benefit colonial objectives, such as infrastructure construction and revenue production. The Land Acquisition Act of 1894 was an important piece of law passed during this time period, allowing the government to take land for public purposes without providing adequate compensation to owners.

2.3.2 Post-Independence Period (1947-1971)

After attaining independence from British rule in 1947, Bangladesh (previously East Pakistan) maintained colonial-era land laws. The East Bengal State Acquisition and Tenancy Act of 1950, that was originally written during British control, continued to regulate ownership of land and land acquisition in East Pakistan. It addressed concerns of land tenure, tenancy, and administration.

2.3.3 Independence and Land Reforms (1971-1982)

Following the 1971 Liberation War of Bangladesh, efforts were made for the implementation of land reforms that addressed past inequalities in land distribution. Land ceilings, transfer of land to landless farmers, and tenancy reforms were all implemented to promote social fairness and agricultural development.

[14] *Devi Das Gopal Krishan v. State of Punjab* [1967] AIR (SC) 1895

2.4 Evolution of Land Acquisition Legislation

The majorly implemented laws that established the way for the development of legislation of land acquisition are shortly listed here in a systematic order:

2.4.1 The Bengal Regulation Act, 1824

The Bengal Regulation Act, passed in 1824, was the beginning of the codified land acquisition regulation. The British rule in India enacted this Act to enforce eminent domain and legitimize property acquisition processes. The main goal of the Act was acquiring lands at a reasonable price for many development purposes, as well as to assure a suitable resolution of the problem of land acquisition for manufacturing of salt.

2.4.2 The Act XLII of 1850

The act was passed by the British government in order to legalize the acquisition of land for the building of railroads. According to the Act, constructing railroads is for the benefit of the public, and any land obtained for this reason is presumed to be used for that purpose.[15] Act of 1850 expanded the provision to Calcutta town, allowing land required for public improvements to be acquired without any legal restrictions. By Act XLII of 1850, construction of railway was made a public purpose. The government was granted summary powers to speed up property acquisition and soil excavation for the construction of canals, roads, and railroads.

2.4.3 The Act XI of 1857

The British government adopted this Act, which applied throughout British India. This act removed all former law and went into effect to improve the previous regulations for land acquisition.[16] It merged several legislations concerning the land acquisition. It was decided to apply this law throughout British India. However, this Act failed to allow the acquisition of land by private corporations. Unfortunately, corruption, inadequate settlements, and other issues took place by this act.[17]

---

[15] Venkanth ananth, 'The Evolution of the Land Acquisition Act', *mint*(online), [2015] < https://www.livemint.com/Politics/T2tN2OWzJIy9SuFgsGsmHN/The-evolution-of-the-Land-Acquisition-Act-from-1824-to-2015.html> accessed on March 15, 2024

[16] Ibid

[17] Ibid

2.4.4 The Act XXII of 1863

This revised the Act VI of 1863, eliminating earlier difficulties in the law. Primarily this act was established for facilitating process of acquisition of land by private corporations. It was passed, allowing the Governor General-in-Council for declaring irrigation, navigation, and dock and harbor improvement projects to be public services.[18] This evolution and unification process continued until Act X of 1870. However, this measure too established the possibility of corruption and aggravation.

2.4.5 The Act X of 1870

Act X of 1870 set a market-value-based compensation rate for land acquisitions. This act replaced the use of arbitrators in dispute resolution with civil courts.[19] Before 1870, the main characteristic of land acquisition law was that the collector only controlled the valuation of land acquired for purchase, and no appeals could be filed because their decision was conclusive unless approved by the collector and the property owner. Because arbitrators in this process were often found to be dishonest and incompetent, the public's funds were wasted.[20]Act X of 1870 solved the issue by carrying out the arbitration system. A civil court could be used to settle a dispute between the landowner and the collector on the land's value assessment. The civil court judge would have resolved the case if he had agreed with either of the two assessors. A request for an appeal to the High Court was typically approved if the judge disagreed with both assessors. Numerous lawsuits, delays, and expenses resulted from this. Although the law initially paved the path for landowners to receive fair compensation, it had multiple weaknesses that led to grave mistakes; as a result, it was deemed ineffectual and was repealed by the statutes of 1894.

2.4.6 The Land Acquisition Act, 1894

The Land Acquisition Act 1894 replaced the Act of 1870. The government passed the act to simplified the process of land acquisition. This Act authorized the government to buy private land in order to protect the public interest. According to this act the compensation amount is final until it is challenged in a court and decree is given against it. The Act was

---

[18] Ibid
[19] Supra, see note 15
[20] Kritya Sinha and Neha Singh, 'Land Acquisition in India: History and Present Scenario', [2018] 2 *Journal of Legal Studies and Research* <https://thelawbrigade.com/wp-content/uploads/2019/05/Kritya-Neha-Singh.pdf > accessed on March 15, 2024

designed to provide a fast way to determine the amount of money that must be paid in order acquire land. As per the Act of 1894, the collector was assigned with ascertaining the market value of the acquired land and using that figure to determine compensation. The decision was appealable to a court, and the compensation was decided through administrative rather than judicial processes. The landowner was entitled to file a lawsuit to resolve the disagreement. However, it was impossible to determine the actual valuation and only estimated market price could be determined responsibly. As a result, the compensation could not be calculated accurately. As a result, the law solely addressed topics that needed to be considered for determining compensation.

Emergency circumstances were covered by this comprehensive law. At the end of the 15-day notice period, section 17 of the act gave a collector the authority to take control of land even before the compensation award was determined. Normally, a collector could not take possession of any land without first determining an award. According to legal requirements, the collector had to provide compensation based on provisional estimations for the following: (a) 10% for structures and buildings; (b) 75% for dwellings, overheads, and gardens; and (c) 50% for vacant 'nal' lands in order to reduce the suffering of individuals impacted. Even though provisions were included for the temporary possession of land, mainly for the removal of earth for road repairs, this law prohibited the requisition of homes and buildings.

The objective of this law was to purchase land without giving the previous owner a reasonable opportunity to challenge it. People in general frequently objected to this feature of the law. It also neglected to include a rehabilitation plan for the impacted parties.[21]

2.4.7 Acquisition of Property on Emergency Basis Act 1989' (Act IX of 1989)

In order to prevent river erosion and manage floods and tidal bore, urgent immovable property acquire was required following the devastating 1988 floods. The 'Acquisition of Property on Emergency Basis Act 1989' (Act IX of 1989) was enacted as a new legislation lasting five years. The provisions of this temporary law will prevail over any other laws that may be in force, as it was granted overriding effect over all other laws. It gave a deputy

[21] Supra, see note 15

commissioner the authority to notify the owner of any land and order its acquisition. The owner could only submit claims of ownership to the deputy commissioner in order to get compensation; the owner was not allowed to contest the legality of his acquisition order. It was repealed in 1994.

2.4.8 The Acquisition and Requisition of Immovable Property Ordinance, 1982

The Acquisition and Requisition of Immovable Property Ordinance, 1982, eliminated all prior legislation governing acquisition of land. This ordinance was passed to reduce the complexities of the procedure of acquiring land. Compensation was to be determined by the deputy commissioner in compliance with the provisions specified in the ordinances' Sections 8 and 9. Subsequently, he must compensate the landowners and make payment prior to acquisition. If an owner disagrees or makes an objection to his assessment, the deputy commissioner will keep the money as revenue deposits in the treasury. The deputy commissioner was deemed eligible to take possession of the property upon the payment of such a deposit, and it is legally presumed that the compensation has been paid. It was provided that the owner could submit the dispute to an arbitrator (a judicial officer equivalent to a sub-judge) and, if required, to an Arbitration Appellate Tribunal headed by a district court.

A crucial element of this legislation is the clause guaranteeing the land's usage for the purposes for which it was acquired. The acquired property cannot be utilized for any other purpose than the one for which it was purchased without first obtaining permission from the Ministry of Land, the government. This is due to the fact that government agencies are the ones that must acquire property. Occasionally, these agencies acquire more land than they need and either fail to use the acquired land for the intended purpose or keep it unutilized for an extended amount of time. According to the law, the land will be given to the DC if it is not used for the reason, it was obtained or is left idle.

However, it neglected to acknowledge the impacted parties’ rights. It had no provision for the rehabilitation of displaced landowners, made no specific mention of public purposes, and ignored a number of major issues, causing disputes among impacted parties.

2.4.9 The Acquisition and Requisition of Immovable Property Act of 2017

Parliament enacted the acquisition and requisition of immovable property act 2017 replacing the ordinance of 1982 because of the drawbacks of the ordinance which made it an imbalanced law to the general people. This Act is the current applicable law in land acquisition. Which allow the government to use eminent domain power to take over private property. It clearly describes the land acquisition procedure. Under the provision of this act the government must pay compensation to the land owner for his land, building, crops, trees and other damage due to the acquisition of land. The amount of the compensation id determined by the Deputy Commissioner at the time of issuing acquisition notice, which is an estimated figure later he increases the amount considering the growing crops, building, income affected by the acquisition.

Under this Act the compensation decided is known as the Cash Compensation (CCL). The law prescribes that compensation be given in cash to the residents in accordance with the agreement if there are standing crops that are farmed by a tenant (Bargadar) under a legally created written agreement. Section 4(13) of ARIPA 2017 authorizes acquisition of community properties for public purposes, provided that the project utilizing the acquired land would either reconstruct the community properties or offer comparable assets in another suitable location. Households and assets transferred from previously acquired property for project purposes, as well as government khas land, aren't included in the acquisition plan and hence are not eligible for compensation under the law. Lands acquired for a specific public purpose can't be utilized for other purposes. In addition, rather than only allowing for partial acquisition, Section 15 of the Act permits the acquisition of entire homes or structures if the owners so want. The acquired assets must be compensated for by the government.

Although this act was passed to replace past ineffective measures, the newly approved law does not adequately protect the interests of the affected parties.[22] It also contains the earlier weaknesses discovered in the aforementioned ordinance.

[22]Md.Ariful Islam, 'Law and Practice for Land Acquisition in Bangladesh' [2019] *Bangladesh Journal of Legal Studies* <https://bdjls.org/law-and-practice-for-land-acquisition-in-bangladesh>

2.5 Conclusion

In present day, the Acquisition and Requisition of Immovable Property Act of 2017 is one of the most recent enactments that outline the acquisition procedure and affected landowners' rights. Through this development, there have been continuous concerns regarding the actual implementation of these rules, particularly in terms of providing proper compensation and legal safeguards for affected landowners. For the benefit of the people of Bangladesh, efforts are still being made to change these laws. These laws were passed with the goal of strengthening the government's jurisdiction while frequently violating the rights of affected parties. Concerns have been raised about the justice and the compensation provided to landowners, along with the transparency of the method of acquisition.

CHAPTER THREE

Legal Framework of Land Acquisition in Bangladesh

3.1 Introduction

The Constitution guarantees the right to own property, with limitations imposed by law.[23] It establishes the basis for protecting the right to property. As stated in Articles 42 and 43, "Subject to any restrictions imposed by law, every citizen shall have the right to acquire, hold, transfer or otherwise dispose of property, and no property shall be compulsorily acquired, nationalized or requisitioned save by authority of law." Based on the constitutional provision several laws have been adopted to govern the land acquisition procedure. The current applicable law in Bangladesh for land acquisition is the Acquisition and Requisition of immovable Property Act 2017. This Act is the principal instrument in acquisition of private property. But there is exception in case of chottogram hill tracks. In case of dispute regarding land acquisition before 1 September 2017 the ordinance of 1982 is still applicable. In this chapter the legal basis of land acquisition, land acquisition procedure, determination of compensation, dispute resolution Process is described.

3.2 Legal Basis for Land Acquisition in Bangladesh

The fundamental purpose of passing a land acquisition law is to make the government eligible to acquire private properly for the sole purpose of public benefit. Article 42(1) of the constitution of Bangladesh states that, “subject to any legal restrictions, every citizen has the right to acquire, hold, transfer, or dispose of property, and no property shall be compulsorily acquired, nationalized, or requisitioned except by legal authority.” According to this article private land owner shall can’t be deprived from right to land but if the land is required for the benefit of public the government can acquire the land giving compensation. This article established the constitutional basis of land acquisition.

[23] *The Constitution of People's Republic of Bangladesh* article 42 and 43

In 2017, parliament enacted the “Acquisition and Requisition of Immovable Property Act, 2017.” This is basically an amendment to the “Acquisition and Requisition of Immovable Property Ordinance (1982).”

The acquisition and requisition of immovable property bill was presented in the parliament on 10 July 2017 by the land minister. This act repealed the ordinance of 1982 to make an update in land acquisition law considering the previous drawbacks. It was argued in the parliament that the ordinance contains provisions which can't sufficiently protect the rights of the private land owner.

The new law states that properties used for religious purposes may only be acquired if doing so is very essential for public welfare. Since the prior law did not include provisions for adequate compensation for affected parties, the bill suggests doing so. If land is bought for a government project, the new law provides an additional 200 percent compensation on the existing market rate; if the land is acquired for a non-governmental organization, the compensation increases to 300 percent. In some circumstances, it also permits the appointment of officials of the joint district judge level as arbitrators. On the other hand, district judges will handle any appeals. Note that all actions taken or acts performed under the former Ordinance are deemed to have been done so under Section 50 of the recently approved Act. And all applications and appeals that remain pending before any authority, arbitrator, or Arbitration Appellate tribunal under the earlier ordinance will proceed as if this Act had not been enacted. Moreover, all notices, notifications, compensation, orders, or awards issued under the prior ordinance will be considered to have been given under this Act.

The core principle of acquisition legislation is the state's sovereign power of “eminent domain". The government may directly own land by purchase, default, or acquisition. All land that is not privately owned belongs to the state; land that is privately owned is subject to eminent domain power of the government.

The Supreme Court of Bangladesh ruled in the case Chairman Bangladesh Steel Mills Corporation v. Masood Reza[24] that the government can acquire land if necessity for public

[24]*Chairman Bangladesh Steel Mills Corporation v. Masood Reza* [1978] 30 DLR (AD) 169

purpose. The court ruled that the government cannot acquire or hold a citizen's property without valid legislative approval. Acquisition of land cannot be made by wrongful use and Interpretation of law. The court stated that the acquisition of land must be done with appropriate legal authorization.

In another important case Zahed Hossain Mia v. Deputy Commissioner, Chittagong and others[25] the court stated that if a land is needed for the government development project and notice of acquisition is served and the objection if any is heard then the acquisition procedure will not be subject to interference.

In the case of Abul Basar v. Bangladesh and others, it was decided that the government was not obligated to give back property to its owner after it was taken and later set free.[26]

3.3 Land Acquisition Proceedings under ARIPA 2017

Proposal: The first step towards the acquisition procedure is making a proposal. In the proposal the full description of the project is for which land is required is provided. The proposal also includes schedule of land to be acquired, guarantee of payment, and other documents which support the proposal.

Action plan: The Deputy Commissioner then make an action plan to structure the acquisition procedure according to the provisions of the Act. The proposal and other required documents are organized in a systematic manner.

Report: The proposed land for acquisition is inspected in person the officials and they make a report then send it to the DC.[27]

Preliminary notice: Upon receiving the report DC gives approval of the acquisition proposal and send it to the District Land Allocation committee or Central land Allocation committee to get local approval. After all permission is given then the DC record the state and condition of the property, tree, crops, building by video, image and other manner

[25] *Zahed Hossain Mia v. Deputy Commissioner, Chittagong and others* [1998] 50 DLR (AD) 50.
[26] *Abul Basar v. Bangladesh and others* [1998] 50 DLR (AD) 11
[27] *The Acquisition and Requisition of Immovable Property Act 2017* circular clause 4

necessary. This is done to determine the compensation amount. Then the DC publishes a notice regarding the acquisition of the land in certain location or near the land.

Joint listing: After then, in accordance with Sections 2(12) and 4(3)(b) of ARIPA 2017, the DC works together with the RB and those who are Interested to compile a list of properties that need to be acquired.[28] In general, it is not possible to acquire cemeteries, mortuaries, or places of prayer.[29]

Objection against acquisition: According to Section 5(1) of ARIPA 2017, any interested person can file an objection to the acquisition process with the DC. The claimant (or an agent) is present while the DC assesses the objection. Following the proper investigations (Section 5(2) of ARIPA 2017), the DC prepares a report and delivers it to the relevant authority thereof.[30]

Final decision: Sections 6(1)(a) and 6(1)(b) of ARIPA 2017 provide that the approving authority (DC, Divisional Commissioner, Ministry of Land) makes the final decision. According to Section 5(3) of ARIPA 2017, the DC generally makes the final decision if no objections are raised regarding the acquisition of land up to 50 standard bighas. In the event of any objections, the DC will have the ultimate decision taker. After receiving approval from the Prime Minister's Office (PMO) and considering the land acquire cases submitted by the DC, the Ministry of Land makes the ultimate decision regarding land acquisitions greater than 50 standard bighas.

Notice to Persons Interested: When the designated authority makes the final decision about the acquisition of any property then the DC notifies the public by serving it to the most recent titleholder/owner and any interested parties in the public and post a notice in accordance with the Kha Form (the ARIPA Circular) at designated locations.[31] The interested party then appears before the DC with supporting paper for proving their land ownership.

---

[28] *The Acquisition and Requisition of Immovable Property Act 2017* s 2(12) and 4(3)(b)
[29] Ibid s 4(13)
[30] Ibid s 5(3)
[31] Ibid s 7(1), 7(2), 7(3), 7(4) Clause 18 of the Circular

Compensation: The DC considers several factors when deciding how much compensation is awarded and how it will be allocated.[32] The market value of the land and its assets, relocation costs, loss of income, and damage to other properties are the main elements that determine how much compensation is awarded. The data from the most current Mauza record of those who are most likely to have an interest in the property is used to determine how compensation will be distributed. After the RB deposits the funds with the DC, the DC gives the RB with an estimate of the compensation amount.

Payment: In accordance with Section 8(3) of ARIPA 2017, the DC notifies the legally entitled party interested upon receiving money from the Requiring Body (RB)[33] and pays them before assuming ownership of the property in accordance with Sections 11(1) and 11(3) of ARIPA 2017. Following payment, the DC releases a statement of acquisition in the Official Gazette and obtains possession of the property.[34]

The acquisition processes are suspended and the DC's declaration is published in the Official Gazette in the event that the RB is unable to provide the compensation amount.[35] The DC may, with approval from the government, halt all acquisition processes before receiving payment and will issue a notice in the official gazette (Section 14(2) of ARIPA 2017). Section 14(3) of ARIPA 2017 states that the DC evaluates the owner's damages or expenses when such acts are canceled or alleviated, and then pays out compensation in accordance with the assessment. The award is given in compliance with the procedures outlined in Sections 8(3), 42(2), and 42(3) of ARIPA 2017 and is distributed to eligible individuals by the DC. According to Article 84(2) of the Constitution and Section 11(2) of ARIPA 2017, if compensation is not able to be paid (for a number of reasons), the DC deposits the money into the Public Account and proceeds with the acquisition process. Those who eligible can get payment straight from the Public Account by submitting documentation proving their ownership and interest.[36]

Objection against compensation award:

---

[32] Ibid s 8(1), 8(4), 9(1), 9(2), 9(3), 9(4), and 10)
[33] Supra, see note 28 Section 8(3)
[34] Ibid s 13(1) and 13(2)
[35] Ibid s 14(1)
[36] *Abdur Rouf Chowdhury v Additional Deputy Commissioner (Land Acquisition*) 3 BLC 330

If someone is injured by a compensation payment, ARIPA 2017 offers particular processes for them to follow. Within the time limit specified by Sections 30(1) and 30(2) of ARIPA 2017, an individual who believes the DC's award to be unfair may appeal to the Arbitrator for an adjustment of the award.[37] An appeal to the Arbitration Appellate Tribunal (Sections 36(1) and 36(2) of ARIPA 2017) is possible if the Arbitrator's decision is not satisfactory. The Arbitration Appellate Tribunal's decision is final (Section 36(4) of ARIPA 2017). An award made by the DC may be enhanced by the Arbitrator by a maximum of ten percent, and the Appellate Tribunal may raise the amount the Arbitrator determines by a further ten percent. In each case, the harmed awardee will receive compensation plus any increase that may be applicable, along with 10% annual interest from the date the initial award was made public or given with objection until the date the revised payment is made or ordered to be made in accordance with the ruling of the Appellate Tribunal or Arbitrator, as applicable.

Jurisdiction of the court: A court may not grant an injunction against any action taken or to be taken under ARIPA 2017 or accept a complaint or petition against any order or action made under it, unless expressly authorized under Section 47 of that law.

3.4 Conclusion

Under Bangladesh's constitution and the Acquisition and Requisition of Immovable Property Act 2017, the government has the right to acquire any land for the purposes of development for the public's benefit in exchange of reasonable compensation. The Act specifies the land acquisition procedure in details. However, the Act emphasizes on government power over landowner rights and welfare which makes the law less effective in protecting the impacted people.

[37] *The Acquisition and Requisition of Immovable Property Act 2017* s 14(1)

CHAPTER FOUR

Problems Within the Current Land Acquisition Law and Proposed Alternative Solutions

4.1 Introduction

Current land acquisition law in Bangladesh is unfavorable to affected parties seeking proper assistance. It is a clear drawback because many of those poor people lose their roots, their sole place of living. From several instances, it is clear that the primary aim of acquisition legislation of Bangladesh is ensuring that the government holds eminent domain power while disregarding the rights of the affected parties. This chapter will discuss the drawbacks of the current land acquisition law as well as provide potential solutions to protect the right of the land owners and other affected people.

4.2 The Drawbacks Within the Applicable Land Acquisition Law in Bangladesh

4.2.1 The term 'public interests' is not clearly mentioned.

One of the most significant factors of land acquisition is ‘public purpose’ which has not been sufficiently defined by the law.[38] As a result, there is a tendency for taking advantage of the flexibility to acquire land for private purpose instead of public.

According to Section: 4(1) of the “Acquisition and Requisition of Immovable Property Act, 2017”, “Whenever the Deputy Commissioner thinks that any property in any location is required or is likely to be required for the benefit of the public or in the public interest, he shall issue a notice in the prescribed manner and will publish in convenient locations or near the property.”

The term "public purpose" is used plainly in the previously mentioned provision, but it is unclear which issues will be deemed to be public purposes.[39] As a result, this clause has

[38] Abu Bakar Siddique & Md. Azhar Uddin Bhuiyan, ‘Preserving People’s Right to Property: Demystifying the Dichotomy of the term ‘Public Purpose’ in case of Acquisition and Requisition of Land’ [2006] *Bangladesh Law Digest (BDLD)*, < https://bdlawdigest.org/wp-content/uploads/2017/07/Preserving-Peoples-Right-to-Property-1.pdf> accessed on 20 April 2024

[39] Ibid

become so ambiguous and flexible that in certain cases, it is unclear whether the acquisition is truly for public purposes or not. it is not like that all the decision taken by the government in power will be for public purpose. there should be a justification of this term.

4.2.2 No provision to return property

Although the legislation emphasizes the government's eminent domain power when acquiring land, even after achieving the acquisition's objective there is no clause allowing the property to be returned to its original owner.

In the case of "Abul Basar vs. Bangladesh and others", It is stated that the government is not always obliged to return property to its original owner after it has been acquired and later released.[40] This judgement based on the acquisition law present a major drawback in our legal system in protecting the right of the land owner. It is important to note that sometimes the proposed land to be acquired land is the sole living place and people has deep root in it. So, if the acquired property is not needed anymore the property should be given back to its owner.

4.2.3 No Limitations on the Amount of Land to be Acquired for Development Projects

It is a bit surprising that in order to enlarge just 190.4 kilometers of the Elenga-Hatikamrul-Rangpur route, officials claim that the Department of Road and Highways needs to acquire 491.5 acres of land.[41] Since the laws remain silent, there will be no compensation given to any of the victims for this wasteful acquisition. From 1970 to 2015, per-person land agricultural dropped at an alarming rate. In case a large amount of land is acquired repeatedly, the general public will suffer problems beyond description.[42]

4.2.4 Resettlement Procedure Ignored

Bangladesh lacks sufficient land to support its massive population. Various initiatives for development were launched between 1960 and 1970 without any resettlement plans. The Kaptai Hydroelectric Dam, finished in 1961, is one of the most famous constructions.

---

[40] *Abul Basar v. Bangladesh and others* [1998] 50 DLR (AD) 11

[41] Munima Sultana, 'Land acquisition a new problem area for RHD', *The Financial Express*(online), June 12, 2018 <https://thefinancialexpress.com.bd/economy/bangladesh/land-acquisition-a-new-problem-area-for-rhd-1528606505>accessed on 20 April 2024

[42] The World Bank '*Arable Land (Hectars Per Person)- Bangladesh*'

Approximately 100,000 native people were relocated and acquired 54,000 acres land for this purpose but did not receive relocation aid because the regulations were quiet on the issue.[43] As a result, the majority of land acquisitions cause pain for private property owners.

From 1970 until 2020, the population has grown rapidly.[44] However, the country's landholdings remain constant. A huge population own comparatively has less amount of land which now are being acquired by the government without attempt to relocate them by legislation. When landowners are compelled to leave their home without a permanent shelter over their heads, all they can do is sigh deeply.

4.2.5 Inadequate Time for Filing Objection

According to the Section 5(1) of Acquisition and Requisition of Immovable Property Act of 2017: "Any person interested can file an objection to the acquisition procedure to the Deputy Commissioner in 15 working days".

According to the legislation, the affected person's time to file an objection is quite inadequate. Since a large number of the victims are poor and uneducated, there's a chance that their lack of awareness will hinder them from filing for relief within the allotted time limit.

4.2.6 Lack of Remedies for Harassment of Landowners

According to the Acquisition and Requisition of Immovable Property ACT, 2017:

"Whenever the Deputy Commissioner thinks that any property in any location is required or is likely to be required for the benefit of the public or in the public interest, he shall issue a notice in the prescribed manner and will publish in convenient locations or near the property."

It has also been mentioned in the Act that,

---

[43] Syed Al Atahar, Development Project, Land Acquisition and Resettlement in Bangladesh; A Quest for Well Formulated National Resettlement and Rehabilitation Policy", *International Journal of Humanities and Social Science* [2013] April 2013, < http://www.ijhssnet.com/journals/Vol_3_No_7_April_2013/33.pdf> accessed on 18 April 2024

[44] Worldometer, *'Bangladesh Population'*, < https://www.worldometers.info/world-population/bangladesh-population/#:~:text=Bangladesh%202020%20population%20is%20estimated, (and%20dependencies)%20by%20population.> Accessed on April 18 ,2024

“Any person who contravenes or attempts to contravene or abets or attempts to abet a contravention of any order made under this Act or who willfully obstructs any person in doing any of the acts authorized or permitted under this Act or any rule made thereunder shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand Taka, or with both”.[45]

The law protects the government’s power to acquire lands and even impose penalties for those who violate the law. However, it is frequently observed that landowners are harassed by the authorities in order to force them to leave their property. Because no penalties are enforced to safe landowners from this extortion, they may sometimes face hard torture.

4.2.7 Incident of inadequate compensation

According to the Acquisition and Requisition of Immovable Property Act of 2017,

"When determining the sum of compensation to be given for any property acquired under the provisions of this Part, the Deputy Commissioner will consider the property's market value at the time of notice published under section 4.

Market value is defined as the amount for which an asset should be exchanged on a predetermined date in the context of a transaction between a willing buyer and seller.[46] The criteria used to determine land prices vary severely. As a result, market value may vary based on a variety of factors. However, there are insufficient guidelines for determining the market worth, which is the private owner's primary interest. There is a chance that the suitable market value will not be determined, depriving private property owners of an appropriate remedy.

4.3 Proposed Alternative Solutions

All of these discussions point to a lack of citizen-friendly features in land acquisition law. The law must not only focus on upholding the state's eminent domain power, but also on providing appropriate relief to aggrieved parties.

---

[45] Supra, see note 37 s 43

[46] Priyanshu Gupta, *‘Determination of Market Value for Land Acquisition’*, Manupatra <http://docs.manupatra.in/newsline/articles/Upload/42A8A66F-AAA2-48BF-BC7C F33D34C59A52.pdf> accessed on 15 April 2024

4.3.1 Inclusion of resettlement provision

The land acquisition plan still lacks an accepted resettlement plan. It is critical to understand that land and resettlement represent two sides of the same coin.[47] Thus, it is impossible to separate relocation from land acquisition. The 2017 Act focuses solely on acquisition and makes no provision for the resettlement of people who were displaced by acquisition for development projects.[48] As a result, a human rights-based strategy should be used in post-acquisition resettlement of affected parties. To relocate the impacted parties, resettlement provisions must be included.

It is critical for landless people to have proper assurance that they will not be homeless, and the government must take appropriate efforts to rehabilitate displaced owners. Procedural laws must be adopted specifically for the purpose of relocating affected persons under specific conditions. It would be good to nominate government representatives to form a committee to provide efficient supervision of the rehabilitation process.

4.3.2 Inclusion of the clear description of Public Purpose

Appropriate steps must be taken to clearly state the public purposes for which land acquisition is allowed. The phrase may be interpreted by the authority for their own advantage in the absence of a clear declaration of public interest. It is unlawful to force landowners out of their homes without first verifying that the acquisition was done in order to benefit the public.

4.3.3 Adopting necessary amendments

Land acquisition legislation should be updated as needed to reflect public demands. Rigid laws frequently fail to attain their pre-planned goals.

4.3.4 Setting land acquisition limits for non-governmental project

In order to establish a clear restriction when acquiring land for non-governmental projects, appropriate criteria should be established. Large areas of land are frequently acquired by non-governmental projects from private property owners which often results in disturbance. A limit for such acquisition can be provided by the government if appropriate

[47] Muhammad Zaman, 'Land acquisition & resettlement: Ending double standards' *The Financial Express* (online) Nov 15, 2017 < https://thefinancialexpress.com.bd/views/views/land-acquisition-resettlement-ending-double-standards-1510753443>
[48] Ibid

criteria are set for such projects. These should compel such non-governmental agencies or organizations to submit appropriate architect structural papers, security precautions for beginning project, scientific assessments of future productiveness, environmental approval certificate, and other necessary documents.

4.3.5 Proper measures to return unused acquired land

In case the land acquisition reason is canceled, shut down or the acquired property is used for purposes other than those for which it had been acquired, the law should return of the property. Provisions should be made in exceptional circumstances to restore acquired land to its prior owner. The government must appoint appropriate authorities to carry out the land return procedure and keep precise documentation of the matter. Section 19 of the ARIPA 2017 should be amended to include a provision for the return of acquired land to the first owner or his/her successor in interest.

4.3.6 Providing adequate time for filing objection

The present law should allow people adequate time to file an objection. The majority of landowners have no knowledge of the acquisition procedure. Furthermore, they lack sufficient knowledge of complaint procedure, the specified limitation period for logging into an objection, and so on. As a result, there is a fundamental weakness in the Act that should be addressed by giving the affected parties a reasonable amount of time to file an objection. It will also ensure the transparency of the entire procedure and that such parties have adequate opportunities to protect their rights.

4.3.7 Special treatment to women, minors and disabled person

Women, children, and the disabled must get special treatment. All affected individuals should receive adequate support during the compulsory acquisition procedure. They should be offered assistance in advocating for their rights. The expenses of resolving the issue should be paid by the required party/agency.

4.3.8 Compensation for the other affected person

The Act should make measures for compensating everyone whose economic situation has been impacted as a result of land acquisition. Not only the individuals with legally recognized interests to the acquired property be compensated; all others who lack formal

legal title to land but have a claim to land that is accepted or acknowledged by Bangladeshi law must also be rewarded.

4.4 Conclusion

During acquisition of land for any development project the right of the land owner must be protected according to the existing law. So, it is crucial that the law sufficiently protect the right of the affected land owner. But the above discussion provides a clear view that the Acquisition and Requisition of Immovable Property Act, 2017 has some drawbacks which are bar to protect the right of the land owner sufficiently. To address these issues, the law must be amended, strict oversight must be maintained, fair compensation mechanisms must be implemented, procedures must be transparent, and a balanced approach must be taken which safeguards both public interest and rights to property.

CHAPTER FIVE

Conclusion

The land acquisition procedure involves a number of responsibilities, including maintaining procedural justice, transparency, and clarity, as well as, most importantly, protecting the rights of the affected people and significantly improving their quality of life. All the land acquisition legislations from the past to present has emphasized more on the power of the government instead of the right of the affected parties. All these laws contain some provisions which stand against protecting the right of the affected parties sufficiently. Here the legislative body has a crucial duty to observe that the provisions of the land acquisition make a balance between the power of the government and the right of the affected party to make the laws effective and acceptable to all.

Acquiring land might be necessary for development purposes, however, the massive displacement and violation of peoples right should be reduced to a minimum level. If not, possible it will require a lot of attention. The government has an obligation to ensure citizens' rights, provide appropriate compensation, and honestly administering acquisition procedure. The government should improve land administration supervision to ensure that the acquisition process is fair. Only a transparent governance of land free from corruption can effectively address land acquisition complications. Development initiatives are carried out for the country's greater benefit. Additionally, agricultural land is being acquired on a regular basis, which is extremely harmful for the nation's overall production of food. and needs specific attention. These challenges must be addressed comprehensively in order to achieve truly sustainable development.

Land acquisition laws, if not effectively implemented, there have a chance to result in widespread violations of human rights, mass relocation, and increase existing problems. As a result, it should ensure the protection of affected people's rights and concerns, followed by the effective implementation of legal obligations that reduce the impact of land acquisition in advance. The existing legal shortcomings in Bangladesh's land acquisition law should be resolved by amending the law in order to safeguard the rights of affected individuals. Even though acquiring property is crucial for the nation's infrastructure

development, it is also essential to monitor the absolute rights of the affected citizens in order to ensure that their fundamental rights are not unfairly abused during the land acquisition process. So, the affected land owners should be given more legal assistance affected people should be given compensation not just for the land lost, but additionally for any disturbance made to trees, crops, and other resources Moreover, they needs to be compensated for any costs resulting from the project's disturbance of their remained land, agricultural land acquisition should be decreased to ensure sustainable development else it will cause a negative effect the activities of the land, acquisition officer should be monitored by making a special committee, Furthermore, vulnerable people should receive training or financial assistance if acquiring land results in them losing their means of livelihood.

The national acquisition of land legislation should include more citizen-friendly regulations to ensure that the acquisitions do not have a negative impact on the lives of affected parties. The land is an essential part of existence for the citizens of Bangladesh. The land acquisition method, therefore, should be performed in an amicable way. Proper monitoring and knowledge of the law can ensure a successful land acquisition.

BIBLIOGRAPHY

Legislation

1. The Constitution of the People's Republic of Bangladesh, 1972
2. Acquisition and Requisition of Immovable Property Act, 2017.

3. The Bengal Regulation Act, 1824:
4. The Act XLII of 1850:
5. The Act XI of 1857
6. The Act XXII of 1863
7. The Act X of 1870
8. The Land Acquisition Act, 1894
9. The Acquisition and Requisition of Immovable Property Ordinance, 1982

Books

1. "Land Acquisition in Bangladesh: Problems and Prospects" edited by Nurul Islam, Kazi Maruful Islam, and Ahmed Kazi Nazrul Islam
2. "Land Acquisition in Bangladesh: A Study on Compensation and Rehabilitation" by Mohammad Rezaul Karim

Case Laws

1. Abdur Rouf Chowdhury v Additional Deputy Commissioner (Land Acquisition) 3 BLC 330
2. Abul Basar v. Bangladesh and others [1998] 50 DLR (AD) 11
3. Chairman Bangladesh Steel Mills Corporation v. Masood Reza [1978] 30 DLR (AD) 169.
4. Zahed Hossain Mia v. Deputy Commissioner, Chittagong and others [1998] 50 DLR (AD) 50.

Lal Singh v. C P Berar [1944] AIR FC 61

Devi Das Gopal Krishan v. State of Punjab [1967] AIR (SC) 1895

Journals

1. Md.Ariful Islam, 'Law and Practice for Land Acquisition in Bangladesh' [2019] *Bangladesh Journal of Legal Studies*
2. Ruhi Begum and Muhammad Mustofa Kamal, 'Governance in Land Acquisition Process: A Study on Shreehatta Economic Zone, Moulovibazar, Sylhet' [2020]10*Journal of Public Administration and Governance*
3. Nasrin Akter, 'Land Acquisition Legislation of Bangladesh and FIG Recommendations from Acquisition only to Addressing the Needs of those Affected' [2022]12*Jagannath University Journal of Arts*
4. Abu Bakar Siddique and Md. Azhar Uddin Bhuiyan, 'Preserving People's Right to Property: Demystifying the Dichotomy of the term 'Public Purpose' in case of Acquisition and Requisition of Land' [2017] *Bangladesh law Digest*
5. Kritya Sinha and Neha Singh, 'Land Acquisition in India: History and Present Scenario', [2018] 2 *Journal of Legal Studies and Research* <https://thelawbrigade.com/wp-content/uploads/2019/05/Kritya-Neha-Singh.pdf > accessed on March 15, 2024
6. Syed Al Atahar, Development Project, Land Acquisition and Resettlement in Bangladesh; A Quest for Well Formulated National Resettlement and Rehabilitation Policy", International Journal of Humanities and Social Science [2013] April 2013, < http://www.ijhssnet.com/journals/Vol_3_No_7_April_2013/33.pdf> accessed on 18 April 2024

Newspaper Articles

1. Shamim and Shakhawat Hossain, 'Right to Land: Is a Fundamental Right' The Daily Star,4 March 2014
2. Munima Sultana, 'Land acquisition a new problem area for RHD', The Financial Express(online), June 12, 2018 <https://thefinancialexpress.com.bd/economy/bangladesh/land-acquisition-a-new-problem-area-for-rhd-1528606505>accessed on 20 April 2024

3. Venkanth ananth, ‘The Evolution of the Land Acquisition Act’, mint(online), [2015] < https://www.livemint.com/Politics/T2tN2OWzJIy9SuFgsGsmHN/The-evolution-of-the-Land-Acquisition-Act-from-1824-to-2015.html> accessed on March 15, 2024
4. Munima Sultana, ‘Land acquisition a new problem area for RHD’, The Financial Express(online), June 12, 2018 <https://thefinancialexpress.com.bd/economy/bangladesh/land-acquisition-a-new-problem-area-for-rhd-1528606505>accessed on 20 April 2024
5. Muhammad Zaman, ‘Land acquisition & resettlement: Ending double standards’ The Financial Express (online) Nov 15, 2017 < https://thefinancialexpress.com.bd/views/views/land-acquisition-resettlement-ending-double-standards-1510753443>

Other Sources

1. World meter, ‘Bangladesh Population’, < https://www.worldometers.info/world-population/bangladesh population/#:~:text=Bangladesh%202020%20population%20is%20estimated, (and%20dependencies) %20by%20population.> Accessed on April 18 ,2024
2. The World Bank ‘Arable Land (Hectars Per Person)- Bangladesh’

View publication stats